

ROOM RENTAL AGREEMENT

Shared housing at 527 State Highway 150, Arroyo Seco, New Mexico 87514

This Room Rental Agreement ("Agreement") is made on October ___, 2026, between **Susan Nelson** ("Susan") and **David S. Paul** ("David"). Susan and David will share Susan's house. They are making this Agreement in a spirit of good faith and neighborliness, and they have written it in plain language so that both of them can understand every part of it.

This Agreement is governed by the New Mexico Uniform Owner-Resident Relations Act, NMSA 1978, Sections 47-8-1 through 47-8-52 (the "Act"). For purposes of the Act, Susan is the "owner" (the person in possession who is renting out the room) and David is the "resident." Where this Agreement is silent, the Act controls. Each of them will keep a signed copy.

1. The People and the House

Susan Nelson has lived at 527 State Highway 150, Arroyo Seco, NM 87514 (the "House") since she and Stan Nelson built it in 2003. She holds the mortgage on the House in her own name and pays it, and the utilities are in her name. She lives at the House and will continue to live there. Susan is the person authorized to manage the House and to receive notices under Section 47-8-19 of the Act. Susan's contact: 527 State Highway 150, Arroyo Seco, NM 87514 (mail: PO Box 796, Arroyo Seco, NM 87514); email suzienelson007@gmail.com; phone 575-770-8039.

David S. Paul is moving to Arroyo Seco from Colorado. David's contact: email stupaul22@gmail.com; phone 720-275-1350. David may receive mail at the House.

2. About the Title to the House

Susan has told David, and David understands, that a quitclaim deed dated June 18, 2025 naming Oliver Dyer-Bennet was recorded with the Taos County Clerk in 2026 (Reception No. 492376), and that Mr. Dyer-Bennet's estate has been in contact with Susan about the House. Susan believes she remains the owner of the House and is getting advice about the matter. David is renting the room with full knowledge of this, and nothing in this Section is a criticism of anyone; it is simply the two of them being open with each other.

So that David is never surprised, Susan agrees to:

- tell David, within **two days**, if anyone contacts her in writing about the ownership or possession of the House, or if any document is filed in court or recorded with the County Clerk about the House; and
- tell David before she signs any new document about the ownership of the House.

Neither of them expects it, but **if David has to move out because someone other than Susan claims the right to possess the House** (for example, by a court order or a formal written notice to vacate), then: David may end this Agreement on **15 days'** written notice; Susan will refund any rent already paid for days David could not stay; Susan will return the security deposit within **5 days** of move-out; and Susan will contribute **\$800.00** toward David's moving costs. This is the whole of Susan's responsibility to David in that situation, and David will not seek anything more from her.

3. What David Is Renting

For David's exclusive use:

- The **front bedroom** ("David's Room").
- The **private bathroom** on the same side of the house as David's Room.

Shared or designated use:

- The **back bedroom**, for David's desk and as a workspace. Susan keeps access to the back bedroom; David's desk and work materials may stay there for the term.
- A **designated storage space in the garage** for David's belongings and equipment, and quiet hobby work with hand tools that does not create fire risk, fumes, or noise during quiet hours.
- The kitchen, living areas, laundry, yard, and other common areas, shared with Susan.
- **One parking space** for David's vehicle. Susan and David will share shoveling of the walkway and parking area after storms. If Susan arranges plowing of the driveway, that is at her expense.

4. Term and Move-In

Early move-in: David may bring his belongings and begin staying at the House any time on or after October ____, 2026, at no charge. Rent begins November 1, 2026.

Fixed term: six months, from **November 1, 2026** through **April 30, 2027**.

After the fixed term: beginning May 1, 2027, this Agreement continues **month to month on the same terms** unless either of them ends it. During the month-to-month period, either of them may end the tenancy with **written notice at least 30 days before the next rent due date**, consistent with Section 47-8-37 of the Act.

5. Rent

Rent is \$800.00 per month, plus a **flat utility fee of \$25.00 per month** (Section 6), for a **total of \$825.00**, due on or before the **1st day of each month**, beginning November 1, 2026. David pays each month as it comes; **no rent is paid in advance** beyond the current month.

How David pays: by Zelle, check, or bank transfer, as the two of them find convenient, with the month noted in the memo. Susan will confirm each payment by text or give a written receipt.

Late fee: \$50.00 if the monthly payment is not received by the **10th day of the month**. (This is below the 10 percent cap in Section 47-8-15(D) of the Act.)

No rent increase during the fixed term. During any month-to-month period, Susan may change the rent or utility fee only by written notice given at least 30 days before the rent due date on which the change takes effect, consistent with Section 47-8-15(F) of the Act.

6. Utilities

The \$25.00 monthly utility fee is a **flat fee** covering David's share of **internet, gas or propane (including heat), electricity, water, trash, and sewer**. There is no separate metering and no additional utility billing to David. Susan keeps the utility accounts in her name and pays the providers. David will use reasonable conservation (for example, not leaving heat on high with windows open).

7. Security Deposit

Security deposit: \$200.00, which David paid on **September 26, 2026**. Susan holds the deposit under Section 47-8-18 of the Act. Within **30 days** after the tenancy ends and David moves out (or within 5 days in the situation described in Section 2), Susan will return the deposit, less any lawful deductions, with a **written itemized statement** of any deductions. Ordinary wear and tear is not deductible. **No other deposit, fee, or prepaid rent is required.**

8. Move-In Condition

At move-in, Susan and David will walk through David's Room, the bathroom, the back bedroom desk area, the garage storage space, and the common areas together, record their condition and any furnishings on **Exhibit A**, take photographs, and both sign Exhibit A. Deductions from the deposit are limited to damage beyond ordinary wear that is not already recorded on Exhibit A.

9. Ending the Agreement Early

Life changes (either of them): during the fixed term, either Susan or David may end this Agreement with at least **30 days'** written notice if any of the following happens:

- David's work or primary income requires him to relocate more than 100 miles from the House;
- serious illness, injury, or death of Susan or David, or of a member of either one's immediate family, that makes continuing the arrangement impractical;
- Susan sells, or contracts to sell, the House, or the House becomes uninhabitable;
- any other major change in circumstances that both of them agree in writing makes continuing unreasonable.

David's option: because David is moving from another state while the House's paperwork is being sorted out, David may also end this Agreement during the fixed term on **30 days'** written notice for any reason.

Title situation: the 15-day option in Section 2 applies in the situation described there.

When this Section is used, David owes rent and the utility fee only through the end of the notice period, with no early-termination fee, and the deposit is handled under Section 7. Nothing in this Section limits either party's rights under the Act.

10. Privacy and Entry

David's Room and the private bathroom are David's private space. Susan will not enter them except **(a)** with at least **24 hours' notice**, at a reasonable time, for repairs, inspection, or showing, or **(b)** in an emergency, consistent with Section 47-8-24 of the Act. Susan will not move or remove David's belongings from the back bedroom desk area or the garage storage space without asking first.

11. Granite

David's dog **Granite**, a 70-pound Weimaraner, is welcome to live at the House for the entire tenancy, with no pet deposit or pet fee. Granite may stay in the house unattended while David is out for the day. David is responsible for Granite's behavior, waste, and any damage beyond ordinary wear, and will keep Granite under control on the property. Susan's welcome to Granite may not be withdrawn during the tenancy as long as David meets these responsibilities.

12. Living Together

- **Cleanliness:** each of them keeps their own bedroom and bathroom, and the shared areas, appliances, fixtures and furnishings they use, clean and in good condition, and cleans up after using the kitchen and laundry.
- **Overnight guests:** allowed. David will give Susan a heads-up in advance, and guests may stay **no longer than two consecutive nights at a time**. David is responsible for his guests.
- **Quiet hours: 9:00 PM to 7:00 AM.**
- **Smoking:** no smoking or vaping inside the house or garage.
- **Alterations:** David may hang pictures and small fixtures in David's Room using small nails or hooks and will patch holes at move-out. No other alterations without Susan's written consent.
- **Shared supplies:** household consumables both of them use (dish soap, paper goods) will be handled by mutual agreement.
- **Monthly check-in:** a brief conversation once a month about how the shared house is working.

13. Maintenance and Repairs

Susan will maintain the House as required by Section 47-8-20 of the Act, including the structure, heating, plumbing, electrical, water and hot water, and any appliances she supplies. David will promptly report anything that needs repair, will use the House reasonably, and will pay for damage caused by him, his guests, or Granite beyond ordinary wear.

14. Insurance

Susan's homeowner's insurance does not cover David's personal property. David will carry renter's insurance for his own belongings.

15. Notices

Routine matters may be handled by text or email. Notices of termination or other formal notices under the Act must be in writing and delivered in person, by mail, or by email to the addresses in Section 1 (or updated addresses given in writing).

16. General Terms

- **Governing law:** the laws of the State of New Mexico, including the Act.
- **Severability:** if any provision is unenforceable in whole or in part, the rest continues in full force.
- **Amendments:** only by a written amendment signed by both of them.
- **Entire agreement:** this Agreement, with Exhibit A, is the whole agreement between Susan and David about the House and replaces the drafts of September 27 and September 28, 2026.
- **Copies:** each of them receives a signed copy.

Signatures

	Name	Signature	Date
Susan	Susan Nelson	_____	
David	David S. Paul	_____	

EXHIBIT A: Move-In Condition Report and Furnishings

Completed together by Susan and David at move-in. Attach photographs (note the number taken). Both sign.

Area	Condition at move-in (note any damage)	Furnishings present
Front bedroom (David's Room)		
Private bathroom		
Back bedroom (desk area)		
Garage storage space		
Kitchen and appliances		
Living areas		
Laundry		
Yard and parking		
Keys received: house ____ bedroom ____ other ____		
Photographs taken: ____ (date: ____)		

Exhibit A Signatures

	Name	Signature	Date
Susan	Susan Nelson	_____	
David	David S. Paul	_____	